

Apex Dream Homes Pvt. Ltd. v. Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 23 May 2023 · WRIT - C No. 17587 of 2023 · **Interim order (23.05.2023): the respondents were directed not to compel installation of a multi-point connection, to continue the single-point connection, and to immediately restore the single-point connection if any multi-point action had been taken; the State (ACS Energy) was impleaded and notices issued. Prima facie, no provision empowers the licensee to compel a society/residents to replace single-point with multi-point, and on the facts more than 51% of the 618 flat-owners wanted single-point. The interim order has been continued on successive dates and the writ remains pending (last listed, in the material before the Court, to 10.04.2026).**

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HEADNOTE

The petitioner-builder of a 618-flat project (whose residents' registered society, Apex Athena Welfare Society, had not yet had maintenance handed over to it) challenged the licensee's (PVVNL's) attempt to replace the existing single-point electricity connection with a multi-point connection, contending that more than 51 per cent of the flat-owners wished to retain the single-point connection and that neither the Electricity Consumers Grievance Redressal Forum, Meerut (whose quorum was incomplete and which was therefore non-functional) had adjudicated its interim prayer, nor had the respondents accepted its 51 per cent consent as required by the UPERC Order dated 08.05.2020 and the Electricity Supply Code, 2005. On the licensee's own instructions only 222 of 618 flat-owners had agreed to a multi-point connection. The Division Bench, prima facie, held that no provision had been shown empowering the licensee to compel a society or its residents to replace a single-point connection with a multi-point connection, and that the licensee's contention (that multi-point be installed on 51 per cent consent) was misconceived where more than 51 per cent wanted single-point. As an interim measure it directed that the respondents not compel a multi-point connection, that the single-point connection continue, and that any multi-point action already taken be immediately reversed. The interim order has since been continued and the writ remains pending.

FACTUAL SUMMARY

Apex Dream Homes Pvt. Ltd., the builder of a project comprising 618 flats (sold, with sale deeds under execution), filed WRIT-C No. 17587 of 2023 against the Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. and others; the State of U.P. through the Additional Chief Secretary (Energy) was later impleaded as respondent no. 4. A registered residents' body, Apex Athena Welfare Society, had been constituted, but as maintenance had not yet been handed over to it by the builder, the builder was pursuing the residents' interests. The grievance was that more than 51 per cent of the residents/flat-owners wanted to retain a single-point connection, while the respondents were attempting to replace it with a multi-point connection. The petitioner had earlier filed WRIT-C No. 13354 of 2023, disposed of on 21.04.2023 with a direction to the Electricity Consumers Grievance Redressal Forum, Meerut, to decide its interim-relief application in Complaint Case No. 13 of 2023 within three weeks; the Forum's quorum being incomplete and it being non-functional, the petitioner filed the present writ seeking to restrain the multi-point installation, to require a mandatory electricity infrastructural audit before any conversion, and to have its representation dated 28.02.2023 and email dated 14.03.2023 decided first. On the licensee's instructions dated 22.05.2023, only 222 of the 618 flat-owners had agreed to a multi-point connection. By order dated 23.05.2023 (Surya Prakash Kesarwani and Anish Kumar Gupta, JJ.) the Court issued notice and granted interim protection; the interim order was continued on 05.07.2023, 09.10.2023 and later dates, the matter remaining pending (last listed, in the material before the Court, to 10.04.2026).

REUSABLE CONSTRUCTIONS

1. Prima facie, no provision of the U.P. Electricity Supply Code, 2005 empowers a distribution licensee to compel a group housing society or its residents to replace an existing single-point connection with a multi-point connection.
order of 23.05.2023 para 7
2. The choice between a single-point and a multi-point connection for a group housing society turns on the residents' majority (51 per cent) consent; where more than 51 per cent of the flat-owners want to retain the single-point

connection, the licensee cannot impose a multi-point connection (here the licensee's own figures showed only 222 of 618 in favour of multi-point). **order of 23.05.2023 para 6, 8-9**

3. Where the statutory Electricity Consumers Grievance Redressal Forum is non-functional for want of quorum, a consumer/society may approach the writ court for interim protection pending constitution of the Forum. **order of 23.05.2023 para 5**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

OBITER

Licensee has no power to compel a group housing society/residents to convert a single-point connection to multi-point

QUESTION

Does any provision of the Electricity Supply Code, 2005 (or the UPERC order) empower the licensee to compel a group housing society or its residents to replace an existing single-point connection with a multi-point connection?

HOLDING

Prima facie, no. No provision was brought to the Court's notice empowering the licensee to compel a society or its residents to replace a single-point connection with a multi-point connection. Accordingly, as an interim measure, the respondents were directed not to compel installation of a multi-point connection, to continue the single-point connection, and to immediately restore the single-point connection if any multi-point action had been taken. This was an interim/prima facie view; the matter remains pending. **order of 23.05.2023 para 7, 15-16**

EVIDENCE *"There is no provision which has been brought to our notice that empowers the respondent no. 2 to compel a society or residents to replace a single-point connection by a multi-connection."* **order of 23.05.2023 para 7**

EVIDENCE *"as an interim measure it is provided that the respondents shall not compel installation of multi-point connection and instead the single-point connection shall be continued."* **order of 23.05.2023 para 15**

FLAG Order-sheet in a pending matter; the only substantive (paragraph-numbered) order is the interim order of 23.05.2023 (paras 1-16), to which the pins refer. Subsequent orders merely continue the interim order and adjourn (last listing 10.04.2026).

HOLDING-UNIT · UP-2005::4.9

OBITER

Residents' majority (>51%) consent governs single-point vs multi-point; licensee's contrary stance misconceived where majority want single-point

QUESTION

Where the licensee contends that multi-point shall be installed if 51 per cent or more flat-owners want it, but on the facts more than 51 per cent want to retain the single-point connection, can the licensee impose multi-point?

HOLDING

No. On the licensee's own instructions, only 222 of 618 flat-owners had agreed to multi-point, so the majority did not want it; the Court prima facie held the licensee's submission (that multi-point be installed) completely misconceived, since more than 51 per cent of the residents/flat-owners wanted the single-point connection. The residents' majority preference thus governed the choice. **order of 23.05.2023 para 6, 8-9**

EVIDENCE *"We prima facie find that on facts of the present case, the submission of learned counsel for respondent no. 2 is completely misconceived inasmuch as in the present set of facts more than 51 percent of the residents/flat-owners want single-point connection."* **order of 23.05.2023 para 9**

EVIDENCE *"only 222 flat owners/residents have agreed for multi-point connection as against the total number of 618 residents/flat-owners."* **order of 23.05.2023 para 6**

PRINCIPLE TAGS

single-point-to-multipoint-requires-51-percent-consumers The conversion from single-point to multi-point turns on the residents' majority consent; the licensee's own figures showed only 222 of 618 flat-owners in favour of multi-point, so with more than 51 per cent wanting single-point, the licensee's stance was prima facie misconceived. **order of 23.05.2023 para 6, 8-9**

clause-4.9-single-point-to-multipoint Prima facie, no provision empowers the licensee to compel a society/residents to replace a single-point connection with a multi-point connection; interim protection was granted continuing the single-point connection. **order of 23.05.2023 para 7, 15-16**

Meerut being non-functional for want of quorum despite an earlier direction to decide the interim-relief application, the petitioner was permitted to approach the writ court, which granted interim protection. [order of 23.05.2023 para 5](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL DETERMINATION OF WHETHER THE LICENSEE MAY CONVERT THE SINGLE-POINT CONNECTION TO MULTI-POINT

Only prima facie findings and interim protection were recorded; the writ remains pending (listed to 10.04.2026 at the last available order) and the merits are undecided. [order of 23.05.2023 para 15](#)

NOT DECIDED — THE PETITIONER-BUILDER'S LOCUS TO PURSUE THE RESIDENTS'/SOCIETY'S INTERESTS

The Court recorded that the builder was pursuing the residents' interests because maintenance had not been handed over to the registered society, but did not adjudicate the builder's standing. [order of 23.05.2023 para 3](#)

RELATED CASES — SEE ALSO

SCJ-2228 — Apex Dream Homes v. Chaitra V (2023) - the same petitioner's contempt proceeding arising from a 23.05.2023 interim order on the single-point/multi-point issue.

SCJ-355 — Dr. Mohammad Afsar Khan - conversion from single-point to multi-point requires the 51 per cent consent of the consumers, the principle invoked here.

SCJ-2661 — Friends Land Developers (2021) - pending challenge to the Clause 4.9 (13th Amendment) 2018 regime for converting single-point supply to multi-point.

SCJ-2205 — M/S M.R. Proview Realtech - a Clause 4.9 single-point-supply dispute in the group housing/builder context.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. Electricity Regulatory Commission Order dated 08.05.2020</i> U.P. Electricity Regulatory Commission	Prescribes that the consent of the residents (51 per cent) be obtained before a single-point connection is migrated to a multi-point connection (or vice versa).	Relied on by the petitioner as requiring its 51 per cent consent, which the respondents had not accepted, before any conversion to multi-point. order of 23.05.2023 para 5	Petitioner	Referred
<i>M/S Apex Dream Homes Private Limited v. State of U.P. (Writ-C No. 13354 of 2023)</i> High Court of Judicature at Allahabad	The petitioner's earlier writ, disposed of on 21.04.2023, directing the Electricity Consumers Grievance Redressal Forum, Meerut, to decide its interim-relief application in Complaint Case No. 13 of 2023 within three weeks.	Referred to as the antecedent proceeding; the Forum having remained non-functional, the present writ was filed. order of 23.05.2023 para 5	Court	Referred

SCJ-2854 · Apex Dream Homes Pvt. Ltd. v. Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. and 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.